

ASCII MASTER FLOW – PANEL 1/12: CONSTITUTION AS A COMPLETE ORDER

PEOPLE / FOUNDING AUTHORITY

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CONSTITUTION

- +-- creates institutions and public offices

- +-- allocates horizontal and territorial competence

- +-- limits power through rights, procedure, checks and remedies

- +-- identifies membership, territory, values and public purposes

- `-- supplies continuity, conflict-resolution and lawful change

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CONSTITUTIONALISM

effective limited government under law, not the document's existence alone

ANSWER LINE: A constitution authorises public power; constitutionalism keeps that power limited.

ASCII MASTER FLOW – PANEL 2/12: FOUR PERSPECTIVES, ONE CONSTITUTION

INSTITUTIONAL -> offices + competence + procedures + relations

NORMATIVE -> justice + liberty + equality + dignity + fraternity

SOCIAL-CONTRACT -> public authority justified by consent and equal political membership

TRANSFORMATIVE -> lawful dismantling of inherited hierarchy through rights and social reform

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INDIAN SYNTHESIS = enforceable higher law + democratic politics + social-revolution project

LIMIT: No perspective displaces text, competence, evidence, procedure or institutional role.

ASCII MASTER FLOW – PANEL 3/12: CLASSIFICATION WITHOUT FALSE INFERENCE

FORM written/codified <-> uncoded; enacted <-> evolved
CHANGE rigid <-> flexible
TERRITORY federal <-> unitary
EXECUTIVE parliamentary <-> presidential
HEAD republican <-> monarchical
SUPREMACY constitutional supremacy <-> parliamentary sovereignty

INDIA -> enacted, codified, mixed-rigidity, federal with centralising features,
parliamentary, republican and governed by a supreme Constitution.

TRAPS: written != rigid; federal != presidential; parliamentary != Parliament-sovereign.

ASCII MASTER FLOW – PANEL 4/12: CONSTITUTIONALISM'S OPERATING CHAIN

POPULAR AUTHORISATION

- > LIMITED GOVERNMENT
- > RULE OF LAW: authority + non-arbitrariness + equality + reasons
- > FUNCTIONAL SEPARATION + CHECKS AND BALANCES
- > RIGHTS + INDEPENDENT REMEDIES
- > RESPONSIBLE GOVERNMENT + ELECTIONS + AUDIT + LEGISLATIVE SCRUTINY
- > ACCOUNTABILITY WITHOUT DESTROYING NECESSARY INSTITUTIONAL INDEPENDENCE

FAILURE AT ANY LINK can preserve constitutional form while hollowing constitutional government.

ASCII MASTER FLOW – PANEL 5/12: INDIAN CONSTITUTIONAL IDENTITY

PREAMBLE: We, the People | sovereign | socialist | secular | democratic | republic

VALUES: justice | liberty | equality | dignity | fraternity

STRUCTURE: federalism | parliamentary responsibility | judicial review | limited amendment

SOCIAL PURPOSE: equal citizenship | social justice | anti-hierarchy transformation

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IDENTITY IS INTEGRATED AND EVOLVING, NOT A CLOSED CHECKLIST IMMUNE FROM ALL CHANGE.

ASCII MASTER FLOW – PANEL 6/12: CONSTITUENT AND CONSTITUTED POWER

CONSTITUENT POWER -> founds or fundamentally reconstitutes the constitutional order

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CONSTITUTED POWERS -> Parliament | executive | judiciary | Union | States | public bodies

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ARTICLE 368 -> special constituted amending power, not unlimited original sovereignty

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BASIC STRUCTURE -> permits wide amendment but prevents constitutional destruction

COURTS review amendments; they do not acquire unlimited power to rewrite the Constitution.

ASCII MASTER FLOW – PANEL 7/12: BASIC-STRUCTURE CASE LADDER

KESAVANANDA BHARATI (1973)

-> wide Article 368 power; basic structure cannot be destroyed

INDIRA NEHRU GANDHI v RAJ NARAIN (1975)

-> Article 329A(4) invalid; election insulation failed basic-structure scrutiny

MINERVA MILLS (1980)

-> limited amending power; judicial review; FR-DPSP harmony/balance

I.R. COELHO (2007)

-> post-24 April 1973 Ninth Schedule insertions remain reviewable for basic-structure damage

SCAORA / NJAC (2015)

-> 99th Amendment and NJAC Act invalidated; judicial independence protected

LIMIT: Basic structure is judicially developed and open-textured, not a closed statutory list.

ASCII MASTER FLOW – PANEL 8/12: SOURCES AND MODES OF CONSTITUTIONAL CHANGE

FORMAL CHANGE

- +-- Article 368 special majority
- +-- Article 368 special majority + ratification by at least half the States
- `-- specified constitutional changes by ordinary legislative majority

INFORMAL DEVELOPMENT

- +-- judicial interpretation and precedent
- +-- statutes and rules operating within constitutional authority
- +-- conventions guiding discretion
- `-- political practice and constitutional culture

LIMIT: Informal practice may develop operation but cannot override clear constitutional text.

ASCII MASTER FLOW – PANEL 9/12: LEGAL, POLITICAL AND SOCIAL CONSTITUTION

LEGAL -> text + binding doctrine + statutes/rules + judicial remedies
POLITICAL -> elections + confidence + debate + committees + federal bargaining + convention
SOCIAL -> civic habits + tolerance of dissent + public reason + equal-status culture
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RESILIENT ORDER = legal enforceability + political accountability + constitutional culture

FAILURES: legalism without democracy | electoralism without limits | culture without remedy.

ASCII MASTER FLOW – PANEL 10/12: LIVING AND TRANSFORMATIVE CONSTITUTION

ENDURING TEXT / PRINCIPLE

- > changed facts or entrenched hierarchy
- > reasoned bridge through text, structure, history and precedent
- > proportionate, institutionally lawful remedy

PUTTASWAMY (2017): privacy, dignity and autonomy in technological conditions.

NAVTEJ SINGH JOHAR (2018): consensual adult same-sex relations; equality and dignity.

SABARIMALA (2018 majority): equality/morality reasoning in a contested religious-freedom setting.

LIMIT: Living or transformative interpretation is not amendment by personal judicial preference.

ASCII MASTER FLOW – PANEL 11/12: STRESS, BREAKDOWN AND RESILIENCE

STRESSORS

emergency concentration | rights hollowing | institutional capture | disabled opposition
convention erosion | federal coercion | normalisation of exception | remedial failure

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RESILIENCE

textual safeguards + courts + Parliament + federalism + elections + audit + civil society
+ professional administration + public reason + lawful amendment

TEST: authority -> purpose -> procedure -> rights -> structure -> remedy -> long-term precedent.

ASCII MASTER FLOW – PANEL 12/12: UPSC ANSWER AND TRAP ROUTE

DEFINE -> constitution + constitutionalism

CLASSIFY -> use independent axes; locate India with qualifications

EXPLAIN -> authority and restraint arise from the same supreme order

ANCHOR -> Preamble + Articles 13, 32, 226, 368 + named cases

ANALYSE -> legal + political + social practice; continuity + change

QUALIFY -> conventions do not override text; courts and Parliament are both limited

CONCLUDE -> democratic transformation succeeds through lawful, accountable institutions

FINAL VERDICT: India's constitutional identity joins popular rule, limited power and social justice.